

TIP SHEET: Withholding or Withdrawing Life-Prolonging Treatments or Measures

Key Points

- Patients (with capacity) have the right to request withholding or withdrawal of life-prolonging treatments.
- Withholding and withdrawing life-prolonging treatments are ethically equivalent (meaning one is not more “invasive” than the other).
- For incapacitated patients, a Surrogate or Proxy may request withdrawal in accordance with the patient's known or best interests.
- Requests must be documented in the medical record by the Attending Physician (or resident/fellow with attending oversight).
- Two attending physicians must confirm the qualifying medical condition and incapacity before action is taken.
- Orders must be re-evaluated periodically. If the patient’s condition improves, withdrawal orders should be rescinded.

Who Can Request Withdrawal

- Capacitated Patients: May request directly.
- Surrogate: May request if the patient is incapacitated and has designated a surrogate.
- Proxy: May request if there is no surrogate. Must be appointed following policy CP02.010.
- Parents/Guardians: For minors, a parent or court-appointed guardian may request.

Documentation Requirements

- The primary team is primarily responsible for entering withdrawal of life support and DNR notes.
- Capacitated Patients: Attending Physician documents the patient's request and enters the order.
- Incapacitated Patients: Two attending physicians must document diagnosis and incapacity.

- If the Patient's Attending Physician is not physically available to enter these orders in the Medical Record, the orders may be entered by another Attending Physician, fellow or senior resident at the direction of the Patient's Attending Physician, fellow or senior resident.
 - A physician (not an APP) must enter the DNR order into EPIC if not already done.
 - Discussion with Surrogate or Proxy must be documented, including consent.
 - Orders must be entered in the medical record by a physician and reviewed periodically.
-

Special Situations

- Pregnant Patients: Surrogates or Proxies cannot consent to withdrawal before viability without court approval.
 - Social Work Proxy: May be appointed for patients with no known surrogate or proxy (See CP02.098).
 - Disagreements: Should be escalated through legal, ethics, or clinical leadership within 7 days.
-

When in Doubt

- Use Chain of Command if there is any conflict.
 - Contact Legal Services, Clinical Ethics Service, or Case Management for help with complex cases.
-

Quick Links

- UF Health Advance Directives Guide: [\[link\]](#)
- DNR Policy [\[link\]](#)
- Withdrawal of Life Support Policy [\[link\]](#)
- Florida DNR Form: [\[link\]](#)
- Hospice in Place Tip Sheet (to be performed by primary team) [\[link\]](#)

Recommendations:

- Update EPIC criteria: If two notes are appropriately documented, an APP should be able to enter the order in EPIC.